

		“First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken.” (Ellerbee v. County of Los Angeles (2010) 187 Cal.App.4th 1206, 1215.) “It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion.” (Ibid.) Additionally, “[c]ourts have construed this first prong rather strictly, finding a mandatory duty only if the enactment ‘affirmatively imposes the duty and provides implementing guidelines.’” (Guzman v. County of Monterey (2009) 46 Cal.4th 887, 898.) “An enactment does not create a mandatory duty if it merely recites legislative goals and policies that must be implemented through a public agency’s exercise of discretion.” (Lockhart v. County of Los Angeles (2007) 155 Cal.App.4th 289, 308.) Here, the relevant municipal code states: “The functions of the recreation and parks department shall include planning and implementing recreation programs and activities, coordination of cultural activities, development and maintenance of parks and recreational facilities, and city beautification.” (Placentia Municipal Code §2.08.100.) The Court takes judicial notice of this municipal code, on its own motion, pursuant to Evidence Code section 452, subdivisions (b) and (h). The above language identifies the anticipated function of the recreation and parks department and reflects a policy of maintaining parks. As the above language includes no implementing guidelines – specifically no instructions as to how parks should be maintained - it is a statement of policy, only, and not a mandatory duty. (Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1090 [“A ‘general statement of public policy’ cannot serve as the basis for a mandatory duty under section 815.6.”]) Based on all the above the demurrer is sustained; however, leave to amend is granted, to permit Plaintiff to allege liability pursuant to Government Code section 835. Defendant to give notice.
113.	2021-1197977 Pham v. Pham	Proposed Intervenor Phuong Truong’s motion to intervene as a defendant-in-intervention as to plaintiff Kim Chi Pham’s cause of action for quiet title in her second amended complaint

		("SAC") is continued to a date to be agreed upon at the hearing. This action, including Proposed Intervenor's motion, is stayed due to defendant Patricia Chau Pham's bankruptcy filing. 11 USC § 362; Ingersoll-Rand Fin. Corp. v. Miller Mining Co. (9th Cir. 1987) 817 F.2d 1424, 1427; In re Gaime (11th Cir. 2021) 17 F.4th 1349, 1353–1354.
114.	2022-1262463 Romero v. FCA US, LLC	Off calendar